

confiscated Mr. Nixon's property, I would question whether a mere historical interest in purely private communications would be a sufficient predicate for taking them for public use. Historical considerations are normally sufficient grounds for condemning property, *United States v. Gettysburg Electric R. Co.*, 160 U. S. 668 (1896); *Roe v. Kansas*, 278 U. S. 191

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employees on government time and so on. The normal tapes that we've heard so much about.

"The Dictabelts, Mr. Nixon has said, are his personal diary. Instead of writing it down, in other words, he dictated it at the end of the day. And we think that's—

"QUESTION: I want to be sure about that concession, because this certainly is of historical interest.

"MR. HERZSTEIN: That's right, it is, but we do not feel it's covered by the statute. We have acknowledged that from the start.

"QUESTION: Is this concession shared by the Solicitor General, do you think?

"MR. HERZSTEIN: We believe it is.

"QUESTION: What about that?

"MR. McCREE: About the fact that the paper belongs to the government and so forth, we don't believe that makes a document a government document[t]. We certainly agree with that.

"Beyond that, if the Court please—

"QUESTION: What about the Dictabelts representing his daily diary?

"MR. McCREE: I would think that's a personal matter that would be—should be returned to him once it was identified.

"QUESTION: Well, is there any problem about, right this very minute, of picking those up and giving them back to Mr. Nixon?

"MR. McCREE: I know of no problem. Whether it would have to await the adoption of the regulation, which has been stymied by Mr. Nixon's lawsuit, which has been delayed for three years,—

"QUESTION: How has that stymied the issuance of regulations, Mr. Solicitor General?

"MR. McCREE: One of the dispositions of the district court was to stay the effectiveness of regulations. Now, I think it held up principally the regulations for public access. The other regulations are not part of this record, and I cannot speak to the Court with any knowledge about them." *Id.*, at 57–59.